

GAHC010164032025



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THE GAUHATI HIGH COURT
(HIGH COURT OF ASSAM, NAGALAND, MIZORAM AND ARUNACHAL PRADESH)

Case No. : I.A.(Civil)/2579/2025 in RSA/127/2025

THE ASSAM STATE TRANSPORT CORPORATION
REPRESENTED BY THE MANAGING DIRECTOR
HAVING ITS OFFICE AT ASTC COMPLEX
PALTAN BAZAR
GUWAHATI 78108
KAMRUP (M)
ASSAM.

2: THE MANAGING DIRECTOR

ASSAM STATE TRANSPORT CORPORATION
HAVING ITS OFFICE AT ASTC COMPLEX
PALTAN BAZAR
GUWAHATI 781008
KAMRUP (M)
ASSAM.

3: THE STATION SUPERINTENDENT

ASSAM STATE TRANSPORT CORPORATION
MORAN
DIST. DIBRUGARH
ASSAM.
VERSUS

MD KAMALUDDIN AHMED AND ORS
S/O LATE PAJIRUDDIN AHMED
R/O MORAN TOWN
P.O.
P.S. MORAN
DIST. DIBRUGARH
ASSAM
PIN 785675

2:ZAMALUDDIN AHMED
S/O LATE PAJIRUDDIN AHMED

3:SMTI. BULIN AHMED
D/O LATE PAJIRUDDIN AHMED

4:SMTI. ALIN AHMED
D/O LATE PAJIRUDDIN AHMED
ALL ARE R/O MORAN TOWN
P.O. AND P.S. MORAN
DIST. DIBRUGARH
ASSAM.

Advocate for : MR. A CHAMUAH
Advocate for : MR. B K DAS appearing for MD KAMALUDDIN AHMED AND ORS

BEFORE
HON'BLE MR. JUSTICE ROBIN PHUKAN
ORDER

08.08.2025

Heard Mr. A. Chamuah, learned counsel for the applicant and also heard Mr. B.K. Das, learned counsel for the opposite parties/respondents.

This application under Order XLI Rule 5, read with Section 151 of the Code of Civil Procedure is preferred by the applicant/appellant for staying the operation of the impugned judgment and decree dated 22.03.2018 passed by the learned Civil Judge, Dibrugarh, in Title Appeal No.11/2013.

Mr. Chamuah, learned counsel for the applicant submits that the connected appeal has already been admitted by this Court and notice has been issued and the record has also been called for and in the meantime, the opposite parties/respondents have started one execution proceeding before the learned Civil Judge, Dibrugarh, being Title Execution Case No.7/2021 and in the said proceeding, the learned Executing Court has already

issued writ and the next date is fixed for report and as such, there is a requirement for staying the impugned judgment and decree dated 22.03.2018.

Taking note of the submission of learned counsel for both the parties and further considering the fact that the connected appeal has already been admitted for hearing, this Court is inclined to allow this application.

The impugned judgment and decree dated 22.03.2018 passed by the learned Civil Judge, Dibrugarh, in Title Appeal No.11/2013 stands stayed, till disposal of the second appeal.

Sd/- *Robin Phukan*
JUDGE

Comparing Assistant